



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White, Planner II
Subject: PLTA-24-4 – Amending UDC Sections 1.4.3 and 2.2.6
Date: May 28, 2024

Background:

The item for consideration is a **UDC Text Amendment**. This is approved by **Ordinance**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/28/2024
- Public Services Committee 6/4/2024
- Second reading 6/10/2024
- Public Services Committee 6/18/2024
- Third and final reading 6/24/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their May 20, 2024, meeting and unanimously voted to recommend the Governing Body approve the proposed text amendment.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Redlined Ordinance
3. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTIONS 1.4.3 DEFINED TERMS AND 2.2.6 TEMPORARY USE APPROVAL OF THE UNIFIED DEVELOPMENT CODE, ADDING A MINIMUM OF FOURTEEN DAYS."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment to the Unified Development Code (UDC) that is the subject of this ordinance meets the review criteria specified in Section 2.4.1.d of the UDC.

Section 2. That on May 20, 2024, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That Section 1.4.3 Defined Terms, of Article 1, General Provisions, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section:

Temporary Use. A use or activity that is intended to occupy the site on a non-continuous basis for more than 14 days.

Section 4. That Section 2.2.6 Temporary Use Approval, of Article 2, Applications, Procedures and Criteria, of the Unified Development Code of the City of Cheyenne, Wyoming, is hereby amended as set out in this section:

2.2.6 Temporary Use Approval

- a. Intent. A temporary use approval is intended to provide flexibility for different uses within a zoning district, but due to the short duration, special conditions relative to the specific site, and other case-specific issues may be acceptable for a short and limited time.
- b. Applicability. An application for a temporary use may be initiated by the property owner or authorized agent for any use within an existing zoning district that occupies the site on a non-continuous basis for more than 14 days.

Section 5. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 6. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

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2.2.6 Temporary Use Approval

- a. Intent. A temporary use approval is intended to provide flexibility for different uses within a zoning district, ~~and specifically allow the potential for uses that are not generally appropriate in a zoning district,~~ but due to the short duration, special conditions relative to the specific site, and other case-specific issues may be acceptable for a short and limited time.
- b. Applicability. An application for a temporary use may be initiated by the property owner or authorized agent for any use within an existing zoning district that occupies the site on a non-continuous basis for more than 14 days. ~~is not otherwise allowed.~~

Section 5. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

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FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

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Published: _____
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PLANNING COMMISSION

MAY 20, 2024

STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code Section 1.4.3 and 2.2.6.

CASE NUMBER: PLTA-24-4

PREPARED BY: Connor White, Planner II, Planning and Development Department

RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** text amendments to the Unified Development Code Sections 1.4.3 and 2.2.6 as outlined in this staff report and recommended by staff, noting the requests meet the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the Planning and Development Director and City Engineer are authorized under UDC 2.4.1.b.3 to bring forward text amendments on their own initiative.

The proposed text amendments are to make clarifications to temporary uses. The amendment adds that a use will be required to apply for temporary use approval if it occupies a location on a non-continuous basis for more than 14 days. Anything that is less than 14 days and not permanent will not require a temporary use application or approval.

This text amendment is mainly to address temporary uses that happen around Cheyenne Frontier Days (CFD). Every year there are multiple temporary uses that tend to show up for just the week of CFD. We would then require them to apply for a temporary use application which has a review period of at least 7 days. At the same time, many of the uses also need to get licensed with the Clerks office. There have been times where the temporary use application come in late and then there is a rush to get everything processed in time for the Clerks office to also issue the license. CFD is roughly a 10 day event, this

amendment would make it so that a temporary use application for any use proposed to operate for the duration of CFD would not be required.

Staff chose 14 days because a Zoning Violations first notice gives 14 days to remedy the violation. The uses that come for CFD are here for just its duration so if they receive a violation letter they will have it remedied by the end of CFD as they generally leave once it concludes.

PROPOSED AMENDMENTS:

Amend UDC Section 1.4.3, Defined Terms, specifically Temporary Use.

Temporary Use. A use or activity that is ~~allowed in the district and which is~~ intended to occupy the site on a non-continuous basis ~~for more than 14 days.~~

Additionally, amend UDC Section 2.2.6, Temporary Use Approval.

a. ***Intent.*** A temporary use approval is intended to provide flexibility for different uses within a zoning district, ~~and specifically allow the potential for uses that are not generally appropriate in a zoning district,~~ but due to the short duration, special conditions relative to the specific site, and other case-specific issues may be acceptable for a short and limited time.

b. ***Applicability.*** An application for a temporary use may be initiated by the property owner or authorized agent for any use within an existing zoning district that ~~occupies the site on a non-continuous basis for more than 14 days is not otherwise allowed.~~

REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

This proposed text amendment is necessary to address an issue not anticipated in the Comprehensive Plan when the Unified Development Code (UDC) was adopted. Temporary uses are meant to be short in duration and not permanent. Anything less than two weeks would not be considered permanent and is very temporary in nature.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. The following Articles are all listed verbatim from Wyoming State Statute.

WYO 15-1-601.

The governing body of any city or town, by ordinance, may:

(b) The governing body may divide the city or town into districts of such number, shape and area as it deems necessary, and within those districts it may regulate and restrict the erection, construction, reconstruction, alteration, repair or use of buildings, structures or land.

Assessment: This amendment proposes modifying the Unified Development Code to change the initial duration of a temporary use to eliminate the need for temporary uses that are less than 14 days in length. This is allowed by state statutes as the City can dictate the length of time and use of land.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

“The amendment promotes the general health, safety and public welfare.”

This amendment provides additional clarification for temporary uses and lines up temporary uses with zoning violation first notices. This amendment will also allow uses who participate in CFD have an easier time getting through City processes in time for the event.

CONCLUSION:

Staff concludes that this text amendment meet the review criteria of UDC 2.4.1.d.

STAFF RECOMMENDATION:

Staff recommends **approval** of text amendments to the Unified Development Code Sections 1.4.3 and 2.2.6 as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.